

Court No. - 39

Case :- WRIT - C No. - 52104 of 2014

Petitioner :- Jamuna Prasad

Respondent :- State Of U.P.And 2 Others

Counsel for Petitioner :- Radhey Shyam Yadav,I.S.Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and 2 and Sri B.K. Srivastava, who has accepted notice on behalf of the respondent no.3.

The petitioner has approached this Court challenging the recovery certificate, which has been issued to recover the outstanding arrears of the bills of electricity consumption.

It is contended that the petitioner is a poor agriculturist having domestic electricity connection of 1 KW only for the purpose of using light and fan. It is also pointed out that the supply made to the petitioner is not metered and a flat/fixed charge @ Rs. 190/- per month is being charged from him. A recovery for a sum of Rs.17,262/- has been issued and the liability under RTI query has been quantified at Rs. 26,654/-, which is being challenged on the ground that the same is neither due nor is payable, particularly, when the petitioner has been making payment of the bills regularly. It is, thus, contended that the impugned recovery certificate issued to him, is illegal or is due to some mistake.

The dispute appears to be purely factual in nature. Under clause 6.5 of the U.P. Electricity Supply Code, 2005, in case, the consumer disputes the accuracy of any bill and files a complaint with the competent authority, the authority concerned shall proceed to decide the same.

Considering the facts and circumstances, the writ petition stands disposed of with liberty to the petitioner to make an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the authority concerned raising his disputes and in case, any such application is made, the said authority shall proceed to decide the same by a speaking and reasoned order, in accordance with law and as per the procedure prescribed under Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005, expeditiously.

Till the disposal of the application to be made by the petitioner, the recovery proceedings shall be kept in abeyance and thereafter, the same shall be governed by the order to be passed by the competent authority on the representation made by the petitioner.

Order Date :- 25.9.2014

Anil